

JUDGE COTE

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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MARITZA ESCOBAR, RAFAEL REYES, and KATIE
REYES,

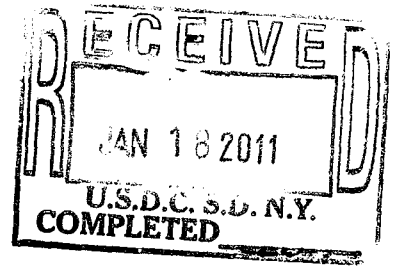
Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE MANUEL
CORDOVA, and POLICE OFFICERS JOHN and JANE
DOES #1-8 (names and number of whom are unknown at
present), and other unidentified members of the New York
City Police Department,

Defendants.
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**COMPLAINT****JURY TRIAL DEMANDED****ECF CASE****PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. Plaintiffs, while lawfully sleeping in their apartment were subject to an unlawful search and were unlawfully arrested by New York City police officers. Additionally, New York City police officers used excessive force against plaintiff Maritza Escobar during the course of the arrest. The New York City police officers also denied plaintiff Maritza Escobar medical treatment for the injuries they caused. Plaintiffs were deprived of their constitutional and common law rights when the individual defendants unlawfully entered and remained in plaintiffs' home, confined plaintiffs, caused the unjustifiable arrest of plaintiffs, used excessive force against plaintiff Maritza Escobar, and denied plaintiff

Maritza Escobar medical attention. Further, defendants maliciously prosecuted plaintiff Katie Reyes in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the First, Fourth, Fifth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this court by 28 U.S.C. §§ 1331, 1342 (3) and (4) and the aforementioned statutory and constitutional provisions.

3. The plaintiff further invokes this Court's supplemental jurisdiction, pursuant to 28 U.S.C. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gave rise to the federally based claims and causes of action.

VENUE

4. Venue is proper for the United States District Court for the Southern District of New York pursuant to 28 U.S.C. § 1391, (a), (b) and (c) and § 1402 (b) because the claims arose in this district.

PARTIES

5. Plaintiff Maritza Escobar, mother of plaintiff Katie Reyes, is a citizen of the United States and a resident of the County of New York, City and State of New York.

6. Plaintiff Rafael Reyes, father of plaintiff Katie Reyes, is a citizen of the United States and a resident of the County of New York, City and State of New York.

7. Plaintiff Katie Reyes, daughter of plaintiffs Maritza Escobar and Rafael Reyes, is a citizen of the United States and a resident of the County of New York, City and State of New York.

8. Detective Manuel Cordova, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

9. On the date of incident, October 27, 2010, Detective Manuel Cordova was assigned to Narcotics Borough Manhattan North.

10. Detective Manuel Cordova is being sued in his individual capacity and official capacity.

11. New York City Police Officers John and Jane Does # 1-8 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

12. On the date of incident, October 27, 2010, Police Officers John and Jane Does # 1-8, were assigned to Narcotics Borough Manhattan North.

13. Police Officers John Does # 1-8 are being sued in their individual and official capacities.

14. At all times relevant herein, the individually named police officer defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police

department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

STATEMENT OF FACTS

16. On October 27, 2010, at approximately 5:30 a.m., plaintiffs Maritza Escobar, Rafael Reyes, and Katie Reyes, were lawfully sleeping in their home located at 520 West 139th Street in the County of New York, State of New York when banging at their front door awakened them.

17. On October 27, 2010, at approximately 5:30 a.m. the individually named police officer defendants broke down the front door of plaintiffs' apartment and entered the apartment without legal justification and/or probable cause.

18. Plaintiffs Maritza Escobar and Katie Reyes were in nightgowns when the defendant police officers entered the apartment, and plaintiff Rafael Reyes was wearing underwear.

19. Upon entering plaintiff's apartment and viewing plaintiffs Maritza Escobar, Rafael Reyes, and Katie Escobar, the defendant police officers should have known that they entered the wrong apartment and that no illegal activity was occurring inside of plaintiffs' apartment.

20. Nevertheless, upon entering the apartment the defendant police officers broke a vase filled with marbles.

21. Defendant Police Officer Manuel Cordova shoved plaintiff Maritza Escobar, who was barefoot, into the glass and plaintiff Maritza Escobar stepped on the glass from the broken vase, which caused her feet to bleed.

22. The defendant police officers refused to provide plaintiff Maritza Escobar with medical attention.

23. Instead, plaintiffs Maritza Escobar, Rafael Reyes, and Katie Escobar were handcuffed after the police officers entered plaintiffs' apartment.

24. Plaintiff Maritza Escobar was handcuffed for approximately two (2) hours while the defendant police officers searched her apartment.

25. Plaintiff Maritza Escobar had chest pain as a result of the stress associated with the defendant police officers' actions inside of her apartment.

26. Plaintiff Maritza Escobar's arm was also in pain because the manner in which she was handcuffed behind her back caused her fistula to hurt her.

27. Plaintiff Maritza Escobar complained to the defendant officers that she was in pain, but they refused to assist her in any way.

28. Plaintiff Maritza Escobar was crying hysterically.

29. Additionally, Maritza Escobar was suffering kidney failure at the time and the stress of the situation caused her body to swell.

30. Plaintiff Maritza Escobar went to Columbia Presbyterian Hospital after the officers left her apartment because her feet were bleeding, she had chest pain, and she did not feel well.

31. X-rays were taken at Columbia Presbyterian Hospital and plaintiff Maritza Escobar was diagnosed with a fracture to her foot.

32. Additionally, plaintiff Maritza Escobar was treated for elevated blood pressure.

33. Plaintiff Maritza Escobar was admitted to Columbia Presbyterian Hospital as a result of the actions of the individually named police officer defendants.

34. Plaintiff Rafael Reyes was also unlawfully detained and handcuffed for approximately two hours while the defendant police officers unlawfully searched his apartment.

35. Plaintiff Rafael Reyes' blood pressure dropped tremendously as a result of the defendant police officers' unconstitutional conduct.

36. The defendant police officers unlawfully searched plaintiffs' apartment for approximately two hours, despite knowing they made a mistake and entered the wrong apartment.

37. The individually named defendant police officers did not find drugs or contraband inside of plaintiffs' apartment.

38. The individually named defendant police officers lacked probable cause to arrest Plaintiffs Maritza Escobar, Rafael Reyes, and Katie Reyes.

39. Nevertheless, plaintiff Katie Reyes was handcuffed by the individually named police officer defendants and placed under arrest.

40. Before being placed under arrest, a female officer told plaintiff Katie Reyes to put other clothes on, and watched plaintiff Katie Reyes as she got naked and then put clothes on her body.

41. Plaintiff was placed in a police van, and was driven around in the van for several hours until approximately 10:30 a.m.

42. Thereafter, plaintiff Katie Reyes was transported to the 30th Precinct.

43. Plaintiff Katie Reyes was handcuffed to a bar in a room with a cell at the 30th Precinct stationhouse for several hours.

44. At approximately 1:00 p.m. on October 27, 2010, plaintiff Katie Reyes was issued a Desk Appearance ticket and released from police custody.

45. Thereafter plaintiff Katie Reyes went to Columbia Presbyterian Hospital .

46. Plaintiff Katie Reyes was prescribed medication to calm her down, and spoke with a psychiatrist as a result of the unlawful actions of the defendant police officers.

47. The individually named defendant police officers lied to the New York County District Attorney's Office about the facts that gave rise to plaintiff Katie Reyes' arrest.

48. Defendant Manuel Cordova initiated the prosecution against plaintiff when he signed the Desk Appearance Ticket.

49. The individually named police officer defendants charged plaintiff Katie Reyes with Unlawful Possession of Marijuana (PL 220.05).

50. The underlying criminal case against plaintiff Katie Reyes terminated in her favor and all charges against her were dismissed on November 23, 2010.

51. The false arrest, false imprisonment, and malicious prosecution of plaintiffs by the individually named police officer defendants caused plaintiffs to sustain psychological and emotional trauma. Moreover, the excessive force used by defendants, the assault, battery, and failure to provide timely medical attention for plaintiffs, by the individually named police officer defendants caused plaintiffs to sustain psychological and emotional trauma.

52. Notices of claim were timely served by plaintiffs Maritza Escobar, Rafael Reyes, and Katie Reyes on the Comptroller of the City of New York and at least thirty days have

elapsed since the service of such notice and adjustment and/or payment has been neglected and/or refused.

FIRST CAUSE OF ACTION

Violation of Plaintiffs' Fourth Amendment and Fourteenth

Amendment Rights

53. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.

54. The individually named police officer defendants were acting in concert and within the scope of their authority, unlawfully and unconstitutionally entered and remained inside plaintiffs' home, arrested and caused plaintiffs to be imprisoned without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

55. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiffs and, in fact, confined

plaintiffs, and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

57. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

59. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims and pursuant to the Fourth Amendment of the United States Constitution this Court has jurisdiction to hear the federally based claim.

THIRD CAUSE OF ACTION

Malicious Prosecution (Plaintiff Katie Reyes)

60. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.

62. Defendants commenced and continued a criminal proceeding against plaintiff Katie Reyes.

63. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff Katie Reyes and for each of the charges for which he was prosecuted.

64. The prosecution and criminal proceedings terminated favorably to plaintiff on November 23, 2010.

65. Plaintiff Katie Reyes was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

66. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

68. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims and pursuant to the Fourth Amendment of the United States Constitution this Court has jurisdiction to hear the federally based claim.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

69. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.

70. The use of excessive force by the individually named defendants in pushing plaintiff Maritza Escobar into glass and handcuffing her in manner that injured her, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

FIFTH CAUSE OF ACTION

Assault

71. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiffs in that he had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiffs, and that such acts caused apprehension of such contact in the plaintiffs.

73. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

75. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

SIXTH CAUSE OF ACTION

Battery

76. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Defendants, their agents, servants and employees, acting within the scope of his employment, intentionally, willfully and maliciously battered plaintiffs when they, in a hostile and/or offensive manner struck plaintiff Maritza Escobar without her consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff Maritza Escobar and caused such battery.

78. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of Defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

80. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

81. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named police officer defendants, individuals who were unfit for the performance of police duties on October 27, 2010, at the aforementioned location.

83. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

EIGHTH CAUSE OF ACTION

Failure to Intervene

84. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 83 with the same force and effect as if more fully set forth at length herein.

85. The individually named police officer defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiffs' liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

88. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

89. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

90. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims and pursuant to the Fourth Amendment of the United States Constitution this Court has jurisdiction to hear the federally based claim.

NINTH CAUSE OF ACTION

Negligence

91. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. Defendants owed a duty of care to plaintiffs.

93. Defendants breached that duty of care by falsely arresting and maliciously prosecuting plaintiff Katie Reyes, and unlawfully entering and remaining inside of plaintiffs' apartment.

94. As a direct and proximate cause of this unlawful conduct, plaintiffs sustained the damages hereinbefore alleged.

95. All of the foregoing occurred without any fault or provocation by plaintiffs.

96. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

97. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

TENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

98. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 97 with the same force and effect as if more fully set forth at length herein.

99. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with each other, engaged in extreme and

outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

100. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

102. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims.

ELEVENTH CAUSE OF ACTION

Deliberate Indifference to Medical Needs (Maritza Escobar)

103. The plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants, despite being aware that they had seriously injured plaintiff Maritza Escobar, refused to administer and properly procure, immediate and adequate medical attention.

105. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the police officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior

107. Pursuant to 28 U.S.C. § 1367, this Court has pendant or supplemental jurisdiction to hear and adjudicate such claims and pursuant to the Fourth Amendment of the United States Constitution this Court has jurisdiction to hear the federally based claim.

JURY DEMAND

108. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiffs prays for relief as follows:

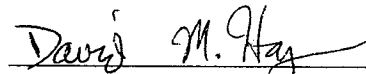
That the jury find and the Court adjudge and decree that plaintiff Maritza Escobar shall recover compensatory damages in the sum of \$2,000,000, plaintiff Rafael Reyes shall recover compensatory damages in the sum of \$1,000,000, and plaintiff Katie Reyes shall recover compensatory damages in the sum of \$1,000,000 against the individual defendants and the City of New York, jointly and severally, together with interest and costs; and punitive damages in the sum of \$5,000,000 against the individual defendants, jointly and severally.

a. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

b. That the plaintiff have such other and further relief as the Court shall deem just and proper.

Dated: New York, New York
January 10, 2011

By:


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